

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 31, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 22CV00203

CAMARGO v. PARADISE LANDSCAPE, et al.

(UNOPPOSED) MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

The motion is granted.

The court finds that the settlement falls within a range of reasonableness and is presumptively valid; appears to be a product of serious, informed and non-collusive negotiations; and has no obvious deficiencies. The court grants preliminary approval of the settlement; conditionally certifies the class; and approves the class notice as to form and content, provided the notice is issued in both English and Spanish languages.

Counsel should appear to set a final hearing on the question of whether the proposed class action settlement, class counsel’s fees and expenses, the class representative’s enhancement award, and the administrator’s fees and costs should be finally approved as fair, reasonable and adequate as to the members of the settlement class.

No. 24CV01796

PLANET56, LLC v. O’DONOGHUE

MOTIONS TO BE RELIEVED AS COUNSEL (UNOPPOSED)

The unopposed motions to be relieved are granted. Defendants and cross-complainants Kevin O’Donoghue and Carrie O’Donoghue shall be present in person or via Zoom.

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If there is no opposition to the tentative, the court will sign the proposed order submitted by counsel. Counsel is directed to serve a copy of the signed orders, with the next hearing date, on defendants and cross-complainants Kevin O'Donoghue and Carrie O'Donoghue.

No. 25CV02936

TD BANK v. CONTRERAS

MOTION TO BE RELIEVED AS COUNSEL

The unopposed motion to be relieved is granted. If there is no opposition to the tentative, the court will sign the proposed order submitted by counsel. Counsel is directed to serve a copy of the signed order, with the next hearing date, on Mary Contreras.

No. 22CV02512

MAYNARD et al. v. ARREDONDO et al.

DEFENDANTS' MOTION TO SET ASIDE DISMISSAL; CCP §473(b)

The unopposed motion is granted pursuant to the mandatory relief provision of Code of Civil Procedure section 473, subdivision b. The April 1, 2026, dismissal without prejudice order is vacated. The court will set a further case management conference to oversee the parties' memorialization of their settlement and entry of dismissal.

The moving party bears the burden of proving they are entitled to relief under section 473, subdivision b. The court is empowered to relieve a party "upon any terms as may be just ...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (§ 473, subd. (b).) Any party to the action or his or her legal representative may seek relief under section 473, subdivision b and relief is mandatory when it is based upon an attorney affidavit of fault.

Defendants' counsel declares that she failed to address the April 1, 2026, OSC sooner and was prevented from appearing at the April 1, 2026, hearing due to technical difficulties (the court failed to pick up (apparent Zoom mishap)). The parties still need court supervision of their settlement and lot line adjustment since communication between them has ceased and the settlement details have yet to be memorialized. (Dunn Declaration.)